

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN MOROCCO

Complete Community Opposition How-To

*This guide uses the Moroccan terms and bodies you'll actually run into — the **étude d'impact sur l'environnement**, the **décision d'acceptabilité environnementale**, the **enquête publique** and its **registre**, the **commissaire enquêteur**, the **recours pour excès de pouvoir** — and explains each in plain words the first time. Morocco's framework has been extended by later evaluation-and-audit laws; the core mechanics apply, but check which texts are in force.*

INTRODUCTION & FRAMEWORK

High in the Saghro mountains of Morocco's southeast, above the village of **Imider**, stands the longest sit-in in the country's history — and it holds two lessons at once. In August 2011, villagers climbed **Mount Alebban** and **shut the valve** on a pipeline draining their groundwater to the giant silver mine below — the largest in Africa, run by a company tied to the royal holding — because the mine was consuming their water while they went thirsty, contaminating their land, and hiring outsiders for the jobs. They named themselves the **Movement on the Road '96**, built adobe huts on the peak, governed themselves by the traditional Amazigh assembly (the *agraw*), and held the mountain — through mass arrests, jailed activists, and years of pressure — for **eight years**, taking their cause as far as the COP22 climate summit in Marrakech.

The Imider villagers who shut the valve and held Mount Alebban for eight years showed a community's courage — but for most, the realistic path is not an eight-year mountaintop siege but the procedural and legal levers Morocco makes available, if constrained. A major project needs an **environmental impact study** (**étude d'impact**) and an **acceptability decision** (**décision d'acceptabilité environnementale**), and it must go through a **public inquiry** (**enquête publique**) with a **register** (**registre**) and an inquiry commissioner. A decision made without those, or on a defective study, can be **annulled by an administrative court** through a *recours pour excès de pouvoir*. But these tools have real limits, and this guide states them plainly. Imider itself won no tangible change: in September 2019 the movement dismantled the camp, the mine kept operating, activists had been imprisoned, and the target was a company linked to the monarchy — the hardest of all adversaries to move. Morocco is a monarchy where the *makhzen* — the palace and its networks — sits above the system; protest is tolerated only within limits and has been repressed, with activists jailed as at Imider; and where a project is tied to powerful interests, the space narrows sharply. So frame your fight around **water, environment, health, and the law** — never the monarchy — and protect your people.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Moroccan project needs its **environmental impact study** and **acceptability decision**; it must pass a **public inquiry**; it needs land, water, and permits; and it can be **annulled by an administrative court** where the process was defective. Every one of those is a link you can grab. **Find the one closest to your hand and pull** — through the register and the courts, not only the street.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the impact study is defective or the public inquiry was skipped or faked, the administrative courts genuinely bite** — a *recours pour excès de pouvoir* can annul the authorisation.
- **If water is being taken or contaminated, that is your strongest and most unifying grievance** — Imider was, at heart, about water.
- **If the project is tied to powerful or palace-linked interests, an outright stop is very hard** — aim honestly at a real inquiry, objections on the register, conditions, delay, a lapsed authorisation, or a clean court ground, and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the inquiry, the register, the acceptability decision, the courts — and **run every front at once**, carefully: the documents, the inquiry, the courts, the community, the press. Frame everything around water, environment, and the law.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental decision is the **acceptability decision (décision d'acceptabilité environnementale)**, issued on the basis of an **environmental impact study** reviewed by a **national or regional committee (comité national / comités régionaux)**. Sectoral permits — mining, water abstraction — come from the relevant ministries and agencies. Local authorities and elected councils have roles. And above the formal system sits the *makhzen*, whose weight you must factor in without ever confronting it directly. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The impact study and public inquiry. The developer files the étude d'impact; a **public inquiry (enquête publique)** opens, run by an **inquiry commissioner (commissaire enquêteur)**, with a **register (registre)** in which the public records objections. *Your opening — and it arms every later step:* get your objections, precisely and in writing, **into the register**, because the committee must consider them and the courts will look to them.

The acceptability decision. The committee issues (or refuses) the acceptability decision. *Your opening:* a decision on a defective study, or after a faked inquiry, is vulnerable to annulment.

Construction and operation. *Your opening:* breaches of the conditions, water taken beyond permit, contamination — and the lapse rule: an accepted project not begun within **five years** needs a **new impact study**.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — and understand, carefully, where powerful or palace-linked interests sit, because that shapes what is possible. **What it still needs** — the acceptability decision not final or under challenge, the water permit, the financing: whatever's missing is the soft spot. **What water it takes** — because water is both the harm most felt and the permit most challengeable.

Who's Supposed to Be Watching

Each is an ally or an arena. The **committees** review the impact study and can be pressed through the register. The **inquiry commissioner** records and reports the public's objections. The **administrative courts** can annul a defective authorisation. The **National Human Rights Council (CNDH)** and its regional commissions can document rights violations, including the treatment of protesters. And Morocco's **associations, its Amazigh and community movements, and its press** are the forces that reach furthest — though all operate within real limits.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the study or inquiry was defective, whether water is at stake, and how powerful the interests behind the project are.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Objections on the inquiry register	15–40%	during inquiry	low	On record; conditions or a redo
Recours pour excès de pouvoir (administrative court)	25–50%	1–3 yr	low–mod	Authorisation annulled
Challenge the water permit / abstraction	20–45%	months–yr	low	Water use curbed; project stalled
CNDH complaint	15–35%	months	low	Findings; some protection
Community mobilisation	20–45%	months–yr	rising risk	Pressure; delay; rarely an outright stop
Lapse (no start within five years)	15–35%	years	low	Authorisation lapses; new study required
Everything together (defective process, water at stake)	35–55%	1–3 yr	mod	Annulled, conditioned, delayed, lapsed
Everything together (palace-linked / powerful interests)	10–30%	1–3 yr	mod	Delayed, conditioned, exposed

The levers that move the needle most are **objections on the register** feeding a **recours pour excès de pouvoir**, the **water permit** challenge, and the **lapse** rule, backed carefully by the community and the press. Imider shows both the courage a community can sustain and the honest floor — a powerful, palace-linked project that an eight-year occupation could not move. So aim for the achievable wins: a real inquiry, a clean court ground, conditions, delay, a lapsed authorisation.

On cost and safety: getting objections onto the register and gathering documents are cheap and low-risk. Mobilisation and protest carry real risk — Imider's activists were jailed — so keep the framing on water, environment, and the law, never the monarchy; protect the vulnerable; and route danger through associations, the CNDH, and the press.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this defective study, this water permit, this register objection — is strong and safer. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners — and understand, carefully, where powerful interests sit.

2. Where is it, and what does it touch? Get the footprint and lay it over your **water sources**, farmland, oases, grazing land, and protected areas. **Water is your strongest, most unifying grievance and most challengeable permit**, so map it first — Imider was about water.

3. What stage is it at, and what's the next deadline? Is the public inquiry open (your register window)? Has the acceptability decision issued (opening the court challenge)? Has an accepted project sat unbuilt for near five years (the lapse)? These openings are time-bound.

4. What does it still need that it lacks? An acceptability decision not final, a water permit, financing. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring villages, the community and its traditional assembly, associations, the Amazigh movement. Imider united seven villages.

What this looks like in real life. A community learns a mine or agro-industrial project will drain and foul its water, with a thin study and a token inquiry. The five questions yield: a company (and the interests behind it); a threat to the village's water (the unifying grievance and the challengeable permit); an inquiry open or a decision just issued; a project still needing its water permit; and a coalition of villages. That's the shape to fight — get the water objections on the register, and preserve the court ground.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and in Morocco the register and the court demand precise, written proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the environmental impact study, the acceptability decision and its conditions, the water permit, the inquiry file. Morocco's access rules and the inquiry's own public nature let you obtain them. Then read the study hard for flaws — an understated impact on water, an ignored alternative, contamination brushed over, a public inquiry that never genuinely reached the community.

Layer two: the ground truth. Dated, located photographs and video of the site, the water sources, the land, any contamination — baseline evidence before any damage most of all — and, carefully, the testimony of affected residents.

Layer three: the map of water and harm. Lay the project over your water sources, oases, and farmland, so the water harm — the heart of the case — is undeniable. A precise, written dossier is what the register, the committee, and an administrative court will act on.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental impact study, the acceptability decision and conditions, the water permit, the inquiry file** — from the committees and the inquiry; force out the rest under the access rules (8A).
- **Local and municipal records** — from the commune and the local authority.
- **Ownership and interests** — company records, and a careful, factual understanding of who's behind it.

- **The water-and-harm map** — water sources, oases, and farmland, laid over the project.
- **Dated site evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Imider's villages sustained an eight-year camp on nothing but solidarity. Build your coalition in four moves — and carefully.

Start with a tight core. The neighbours most affected, the elders and the youth, the people who know the water and land, a few tireless organisers.

Draw on your own traditions. Imider governed itself by the *agraw*, the traditional Amazigh assembly — a source of legitimacy, unity, and disciplined decision-making. Your community's own structures can carry a long fight.

Bring in associations and lawyers — early. Reach Morocco's environmental and human-rights associations, the Amazigh movement, and lawyers who can run a *recours pour excès de pouvoir* and challenge a water permit. They bring the legal firepower the register and the courts require.

Build to last, and protect people. Moroccan fights can run for years, and the state has jailed activists. Build clear roles, a secure shared archive, a way to decide together (your own assembly can serve), and a plan for the financial, emotional, and physical risks. Keep the framing on water, environment, and the law — never the monarchy — protect the vulnerable, and route danger through associations, the CNDH, and the press.

STEP 4: LEGAL CHALLENGES & THE PUBLIC INQUIRY

Law is Morocco's most reliable lever for most communities, because a defective process can be annulled — and it is safer than a prolonged occupation.

Get Onto the Register — It Is the Foundation

The **public inquiry (enquête publique)** and its **register (registre)** are your foundation. Record your objections there, precisely and in writing — that the study understates the harm to water, that alternatives were ignored, that the inquiry never genuinely reached the community. The committee must consider what's on the register, and the courts will look to it, so this is the single most important lawful step.

The Recours pour Excès de Pouvoir — Annulment

If the acceptability decision or authorisation is granted on a defective study or after a faked inquiry, challenge it in the **administrative court** by a **recours pour excès de pouvoir** — a suit to annul an unlawful administrative act. Morocco's administrative courts have annulled authorisations where the acceptability decision was absent or the inquiry defective. This is your sharpest legal tool; build the clean ground for it through the register and the documents.

The Water Permit and the Lapse Rule

Two further levers. First, the **water permit / abstraction**: where a project takes or contaminates water, the water authorisation is both the harm most felt and a permit you can challenge — the heart of Imider. Second, the **lapse rule**: an accepted project that has not begun within **five years** requires a **new impact study**,

which reopens the whole fight. Watch both.

The Honest Limits

Straight talk: the courts and the inquiry are real levers, but a palace-linked or powerful project is very hard to stop; protest is risky and activists have been jailed; and even an eight-year occupation, as at Imider, won no tangible change. So use the tools — the register, the recours, the water permit, the lapse — pair them carefully with the community and the press, keep the framing on water and the law, protect your people, and count a real inquiry, a clean court ground, an annulment, conditions, delay, and a lapse as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Water becomes the unifying grievance. Not "we oppose the mine" but *"this drains and poisons the water our village lives on — the water permit and the study must be challenged."*

A defective study becomes an annulment. *"The impact study understated the harm and the inquiry never reached us — the authorisation is unlawful."* (The recours ground.)

The register becomes the record. *"Our objections are on the inquiry register, which the committee must consider."*

The harm becomes a careful public story. *"A remote village left without water, while the mine below runs — a question of water and dignity, and of the law."*

Match it to the venue: the objections to the register; the defective study to the administrative court; the water take to the water authority; the human story, carefully, to the press. Keep the framing on water, environment, and the law.

STEP 5: MEDIA STRATEGY

In Morocco, attention can help — Imider reached COP22 and the wider world — but it must be handled with care, kept to environment and water, and never turned against the monarchy.

Lead with water and dignity, not procedure or politics. Not "the acceptability decision was defective" but "a village left without water while the mine below runs." Use your strongest material: dated photographs, the map of the project over the water, community voices, and — carefully — the human story.

Work several audiences at once. Local and national associations and press build pressure; international and Amazigh-solidarity networks amplify and offer some protection. Make it easy: captioned photos, accurate summaries, a map, careful interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything and invite reprisal. And protect people — keep the framing on water and the environment, never the monarchy; weigh every public act; and let the community lead its own story.

EMAILS & LETTERS

Make them your own; keep them factual, calm, and focused on water, environment, and the law; keep copies; and protect anyone at risk.

8A — Access-to-information request (to the committee / authority).

Subject: Demande d'information — [project].

"We, residents of [place], request the environmental impact study, the acceptability decision and its conditions, the water permit, and the public-inquiry file for [project] at [location]. [Contact.]"

8B — Objection on the inquiry register.

Subject: Observations — enquête publique de [project].

"We, residents of [place], record our objection to [project]: [it drains and contaminates our water; the impact study understates the harm; alternatives were ignored; the inquiry did not reach our community]. We ask that acceptability be refused. [Attach evidence.]"

8C — Recours pour excès de pouvoir (to a lawyer).

Subject: Recours pour excès de pouvoir — [project].

"We instruct you to challenge, before the administrative court, the [acceptability decision / authorisation] for [project], on the grounds that [the study was defective / the public inquiry was absent or faked / our objections on the register were ignored]. [Attach the decision and our evidence.]"

8D — Challenge to the water permit (to the water authority).

Subject: Objection — water abstraction for [project].

"We report that [project] [takes / contaminates] the water our community depends on: [specifics]. We ask you to review and refuse or condition the water authorisation. [Attach evidence.]"

8E — To the National Human Rights Council (CNDH).

Subject: Plainte — [project] à [lieu].

"We ask you to document the harm to our water and rights from [project], and [any treatment of protesters]. [Attach evidence.]"

8F — To a financier or buyer.

Subject: Environmental and legal risk in [project].

"We understand your institution may be [financing / buying from] [project] at [location], which drains and contaminates our water and faces legal challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect its water from [project].

"For generations the people of [place] have lived from [the water / the oasis] at [location]. Now [project] threatens it. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community (carefully).

Subject: We can protect our water — here's how.

"[Project] threatens [our water / land]. At Imider, our neighbours held a mountain for eight years for their water — and taught the country their name. With the inquiry register, the administrative courts, the water permit, and our own assembly behind us, we have real tools. Please join us — carefully, and protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its water impact.** Water is your strongest, most unifying grievance and most challengeable permit.
2. **Get your objections onto the inquiry register (8B), precisely and in writing.** It is the foundation of everything.
3. **Request the documents (8A), and read the impact study for flaws.**
4. **Photograph everything, with dates and places, safely.**
5. **Get a lawyer for a recours pour excès de pouvoir (8C), and challenge the water permit (8D).**
6. **Organise through your own assembly and go public carefully (8G/8H) — on water and the law, never the monarchy.**

Even lean, those six build the record, preserve the court ground, hit the water permit, and protect your people.

WHEN THE SYSTEM IS TILTED

Morocco's tools are real, but the field is often tilted, and you must plan for it.

When the project is palace-linked or powerful. Even an eight-year occupation could not move Imider's mine. Don't stake everything on a stop: use the register and the courts, keep the framing strictly on water and the law, and aim for a clean court ground, conditions, delay, and a lapse.

When the inquiry is a formality. A token inquiry that never reached the community is a defect — document it, and it becomes a recours ground.

When protest is repressed. Activists have been jailed. Keep the framing on water and the environment, never the monarchy; protect the vulnerable; and prefer the register and the courts to a prolonged, exposed occupation.

When the authorisation stalls. Use the lapse rule — an accepted project not begun within five years needs a new study, reopening the fight.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Morocco has real problems with the closeness of powerful and palace-linked interests to major projects, so this matters — but it must be handled with special care.

How to spot it. Acceptability decisions against the evidence; an inquiry engineered to exclude; water permits granted against a community's needs; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Court of Accounts** examines public money. The **National Authority for Probity, Prevention and the Fight against Corruption** addresses graft. The **CNDH** documents rights violations. The **administrative courts** can annul a tainted authorisation. And Morocco's **press and associations** have exposed captured projects — within real limits.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep strictly to facts, water, and the law, never the monarchy or personal accusation. Route serious evidence to the audit and anti-corruption bodies, the CNDH, and trusted journalists rather than making claims you can't back — the reprisal risk is real. Pair the exposure with the legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the water grievance aims it; your own assembly builds the muscle; the register and the courts press the case; the media raises the cost carefully. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project and its water impact; get your objections onto the inquiry register; request the records; photograph the baseline; organise through your assembly; get a lawyer.

In the thick of it (months–years): bring the recours pour excès de pouvoir and the water-permit challenge; deepen the coalition and the expert critique; open the media front carefully; watch the lapse clock.

The long haul (years): carry the court case; keep the community and the attention alive; hold the line for a real inquiry, an annulment, conditions, delay, or a lapse — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Morocco can be attempted with real tools — and Imider shows both the courage a community can summon and the hard limit when power and wealth are aligned against it: an eight-year occupation for water that won no tangible change, against a mine tied to the monarchy. Hold both. Morocco's tools are real: an impact study and acceptability decision that can be challenged; a public inquiry and register that put objections on the record; administrative courts that annul defective authorisations; a water-permit lever; and a five-year lapse rule. And the constraints are real: the *makhzen* above the system, repression of protest and jailed activists, and projects tied to powerful interests that are very hard to move.

Here's the discipline that wins what can be won. Make water your grievance and your lever, and pry loose the study and the permit. Get your objections onto the inquiry register — the foundation of everything — and preserve a clean ground for a recours pour excès de pouvoir. Challenge the water permit, watch the lapse clock, and organise through your own assembly. Keep every part of it on water, environment, and the law — never the monarchy — and protect your people above all. Count a real inquiry, a clean court ground, an annulment, conditions, delay, and a lapse as wins. That's the honest lesson of Imider — the courage to hold, and the wisdom to fight where the law can reach. So can you — carefully.